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‘We will fight like hell’: California lawmakers kick off special session to combat Trump

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SACRAMENTO — California lawmakers started work Monday for the upcoming legislative session, and preparing for Donald Trump's second presidency is at the top of their agenda.

The state Senate and Assembly began both their regular two-year legislative session and a special session that Gov. Gavin Newsom called to prepare for the new president. Specifically, he's asking lawmakers to approve up to $25 million in additional funding for Attorney General Rob Bonta to defend California policies in court against efforts promised by Trump to erode them.

They include California's policies that forbid local police from helping federal immigration authorities with deportations and its nation-leading car pollution rules. Trump has also threatened to withhold funding from California schools and federal disaster assistance over California's liberal policies.

"The freedoms we hold dear in California are under attack — and we won't sit idle," Newsom said in a statement last month announcing the special session. "We are prepared to fight in the courts."

The proceedings Monday were largely ceremonial, focused on swearing in newly elected lawmakers and celebrating with their families at the Capitol. Despite a rightward shift in California and across the country in last month's elections, Democrats maintained supermajorities in both houses, meaning Newsom and legislative leaders will likely not have trouble passing most of their agenda.

The ceremonial session Monday marks the only scheduled meeting for lawmakers this month, meaning most of the work to prepare for Trump's presidency will take place in January. Newsom intends to sign the legislation appropriating money to Bonta's office before Trump's inauguration, according to his office. Assembly Member Jesse Gabriel, D-Encino, announced Monday that he would introduce two bills to fulfill Newsom's request — one to appropriate up to $25 million for Bonta's office and another to make $500,000 available to immediately begin legal prep.

Assembly Member Rebecca Bauer-Kahan, D-Orinda, said she's particularly concerned about the possibility Trump could use an old federal law called the Comstock Act to ban the sending of abortion drugs through the U.S. mail. She said she and her colleagues have a plan to pass legislation to preserve that ability in California, something Bonta alluded to the day after Trump's election.

On Monday, Assembly Member Maggy Krell, D-Sacramento, and Assembly Member Cecilia Aguiar-Curry, D-Winters, announced they would introduce a bill to shield abortion pill makers and distributors and health care providers from prosecution related to transporting, distributing or administering abortion pills in California. Bonta, who attended the swearing-in ceremony for new lawmakers at the Capitol, told the Chronicle on Monday that bill could be amended to include additional protections if Trump tries to block abortion providers from sending abortion pills through the mail. Bauer-Kahan said she would introduce a bill to crack down on cities that attempt to block new abortion clinics from opening.

Though Bauer-Kahan said she thinks it will be important for the Legislature to pass policies shoring up abortion and privacy rights ahead of Trump's inauguration on Jan. 20, she noted that they already passed many laws to do just that during his first administration, including LGBT protections and environmental regulations.

"We did a lot during the first Trump administration," she told the Chronicle. "The question that I have is, have we closed all the loopholes?"

Another open question, she said, is whether courts will side with California in the same way they did during Trump's first term, when California and other blue states won many cases against Trump policies. During his presidency, Trump appointed many federal judges, meaning the judiciary has a different makeup than in 2016, when he was first elected.

"Part of the conundrum we're in, which is different from the first term, is that the courts are a bit of a wild card," Bauer-Kahan said.

Sen. Kelly Seyarto, R-Murrieta, said it was a mistake for the Legislature to embark on the special session, arguing it could prompt the federal government to withhold funding from California.

"What we're doing today is saying… we're going to fight you tooth and nail for everything," Seyarto said, addressing his fellow lawmakers from the floor of the Senate after new members were sworn in. "That means they're going to fight us tooth and nail for everything."

Democratic legislative leaders, meanwhile, have supported Newsom's decision to call the special session.

In response to Newsom's announcement last month, Senate President Pro Tem Mike McGuire called Trump "petty, vindictive" and willing to pursue "dangerous" policies to get his way.

In his comments on Monday, McGuire did not mention Trump by name, but promised to fight to protect immigrants, defend abortion access and combat climate change regardless of what happens at the federal level "in the coming four years."

"We will fight like hell to protect everyone who calls California home in the years to come," the Geyserville Democrat said.

Assembly Speaker Robert Rivas, D-Hollister, also did not mention Trump by name on Monday. He focused his remarks on affordability issues that he said legislators should address in the new session. Rivas said that while voters in California continued to uphold values of protecting reproductive and LGBTQ freedoms, they sent a message that they are unhappy on economic issues.

"They don't feel that the state of California is working for them," he said.

Rivas contrasted unity he hopes to foster with the division he sees on the national level, saying that he hopes to work across the aisle with Republicans.

"This new administration in Washington, they're going to claim that you can only lift people up by tearing others down. We know that there's a better way," Rivas said. "It's called the California Dream."

During the last Trump administration, California spent about $42 million on 122 lawsuits challenging federal policies, according to Newsom's office. Newsom aides argue that money was well spent, and point to several lawsuits that resulted in billions of dollars in funding continuing to flow to California.

Early budget projections suggest Newsom and lawmakers will have little room for new spending, which could curtail their ambitions to lead the resistance to Trump policies. Newsom, in particular, faces a difficult balancing act in fighting back against the incoming federal administration while avoiding angering a president on whom he relies for a wide array of priorities.

"Twenty-five million is a start. It's a down payment," Bonta told reporters Monday morning. He suggested that it would be more expensive for California to fight Trump's policies during his second term than it was during his first.

Last month, Newsom traveled to Washington to meet with President Joe Biden and White House officials to

advocate for disaster response funding, climate waivers and health care policies that require federal approval.

He also met Democratic members of California's congressional delegation and asked for their help getting those pending policies approved before Trump takes office.

Members of Congress don't have an official role in greenlighting those policies, but can help advocate for them to the White House. Newsom also asked them for help shoring up funding for high-speed rail and Salton Sea restoration, and securing federal reimbursements for wildfire and flooding cleanup, Rep. Sydney Kamlager-Dove of Los Angeles said.

Rep. Mark DeSaulnier of Antioch said he's particularly concerned about California's car emissions waivers, which allow it to set more stringent clean car rules than the rest of the country.

"There is a financial interest in keeping California at the forefront of new energy. And because of the way the Clean Air Act is written, no other state can do that without us showing leadership," DeSaulnier said.

The most important message several of the House members took away was ensuring California gets the funding it is due.

California receives less federal funding than it pays in taxes, and is typically ranked in the bottom 10 states for federal spending per capita, according to several reports.

"California puts out more than many other states, and so we should get our reimbursements back," Kamlager-Dove said. "Lord knows we give a lot to the federal government."

Bob Egelko contributed to this report.

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